

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, March 31, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2020-22056 against Sergeant Michelle Figueroa, Tax Registry No. 948964. This case was conferenced on March 10, 2022, before Assistant Deputy Commissioner of Trials Josh Kleiman, who approved the negotiated penalty of a reprimand, after a guilty plea.

Jonathan Darche

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board





DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

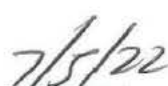
CASE NO. 2020-22056
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, FIGUEROA	FIRST MICHELLE	M.I.	COMMAND 061 PRECINCT
SHIELD NO. 3963	TAX REGISTRY NO. 948964	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Sergeant Michelle Figueroa, on or about December 9, 2018, at approximately 1908 hours, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b) Kings County, abused her authority as a member of the New York City Police Department, in that she entered § 87(2)(b) § 87(2)(b) Kings County, without sufficient legal authority.	PLEADED GUILTY	REPRIMAND .00 - It is recommended that the Respondent be Reprimanded.
2 . Sergeant Michelle Figueroa, on or about December 9, 2018, at approximately 1908 hours, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b) Kings County, abused her authority as a member of the New York City Police Department, in that she searched § 87(2)(b) § 87(2)(b) Kings County, without sufficient legal authority.	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER


DATE

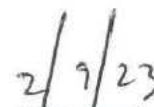
POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER


DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 2, 2023

Re: CCRB Case No. 201810315 (Incident Date: December 9, 2018) involving Sergeant Michelle Figueroa, Tax No. 948964 (DADS No. 2020-22056)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Michelle Figueroa and has determined that the sergeant's entry and search into the residence were appropriate given the totality of the information available at the time, and therefore did not constitute actionable misconduct.

In this matter, Sergeant Figueroa responded to a 911 call where the caller had claimed that people were trying to shoot her and were outside her building with weapons which may have been supplied by her ex-husband, a retired police officer, who was also there, dressed in black, with a ski mask. She made additional outlandish claims and requests to the 911 operator, including demanding CIA and FBI agents respond to her home, which further supported Sergeant Figueroa's ultimate decision to take the caller to the hospital for a psychological evaluation, as an emotionally disturbed person (EDP). Sergeant Figueroa evaluated the situation upon her arrival and observed additional behaviors which she determined were sufficient, in combination with the information she had already received, to justify entering the residence for the sole purpose of removing the caller to the hospital.

While the CCRB tacitly acknowledged that the 911 caller was in fact an EDP, by unsubstantiating the allegation that the caller was improperly taken to the hospital for an evaluation, the allegations of improper entry and search were nonetheless substantiated. CCRB did recognize as a mitigating factor, that "Sergeant Figueroa demonstrated good faith in entering and searching for [the caller], based on the totality of the circumstances." It is exactly this reasoning that justified Sergeant Figueroa's decision to enter and search the residence, under the emergency exception to the warrant requirement, as the caller was deemed to be a potential danger to herself or others, making removal to the hospital immediately necessary. It must be noted that upon completing the search of the caller's apartment, it was found that the caller had jumped from her balcony to a neighbor's balcony, where she was finally discovered hiding under a table. Clearly the caller's dangerous behavior ratified Sergeant Figueroa's decision to enter the apartment in an effort to protect the caller from harming herself.

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Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Sergeant Figueroa will receive no disciplinary action.

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Matthew Schieffer, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

February 8, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Michelle Figueroa
Disciplinary Case No.: 2020-22056

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated February 2, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that Sergeant Figueroa’s “entry and search into the residence were appropriate given the totality of the information available at the time and therefore did not constitute actionable misconduct.” Based on that determination, you intend to dismiss the Charges and Specifications and impose no disciplinary action against Sergeant Figueroa. CCRB disagrees with your recommendation.

It is undisputed from the body-worn camera videos and statements that Sergeant Figueroa entered and searched § 87(2)(b) home. Although the officers originally arrived on scene due to § 87(2)(b) numerous 911 calls that she was in danger and that she had been threatened by her sister and niece with guns, once the officers arrived and began to investigate the situation, they found § 87(2)(b) claims to be incredible and determined that she was not in danger. However, Sergeant Figueroa did not provide these facts as factors in deciding to enter and search § 87(2)(b) home. Sergeant Figueroa stated that the only reasons that she felt § 87(2)(b) was a danger to herself was because § 87(2)(b) told her that people were watching her, that her ex-husband was a former NYPD officer, and § 87(2)(b) told her that § 87(2)(b) calls 911 frequently and “has problems with the family.” None of these factors stated by Sergeant Figueroa suggest that § 87(2)(b) was a danger to herself or others or that there was an emergency or an immediate need for assistance.

Sergeant Figueroa further stated that § 87(2)(b) could harm herself by jumping from the front balcony or with some item that was inside of her apartment, but Sergeant Figueroa did not provide any additional factors that would have led her to reasonably believe this. Although § 87(2)(b) acknowledged that she had climbed from the rear balcony of her apartment to the neighboring rear balcony, no officers were aware of this action at the moment of the entry, and therefore it could not factor into their belief that § 87(2)(b) was a danger to herself at the time of the entry. In addition, no other officer on scene described any actions taken by § 87(2)(b) that would make them consider her to be an immediate danger to herself or others. Based on the totality of the circumstances, there were no emergency circumstances justifying the entry and search of § 87(2)(b) house and therefore, Sergeant Figueroa is guilty of Specification One (1) and Specification Two (2).

Under the Discipline Matrix, the mitigated penalty for an unlawful search of or entry into a premises is training. At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. If the CCRB were to resolve this case today, and Sergeant Figueroa were to accept the findings regarding Specifications One and Two, the CCRB would dismiss the charges and specifications in return for the Department imposing training on her. The CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, and, based upon the foregoing, CCRB requests that if the Police Commissioner cannot accept the agreed upon disposition, she should dismiss the charges and specifications against and impose training upon Sergeant Figueroa.

Respectfully submitted,



Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board

Cc: Matthew Schieffer, Esq.

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, July 5, 2022. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2020-22056 against Sergeant Michelle Figueroa, Tax #948964, for a Reprimand. Assistant Deputy Commissioner, Trials Josh Kleiman, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

Charges and Specifications is an egregious penalty in regard to this case. It is disingenuous to recommend a Reprimand while not also recommending the dismissal of the Charges and Specifications. The Respondent's record should not be tarnished with Charges and Specifications, when CCRB is recommending a Reprimand (Training) and she is accepting it. In addition, the Respondent was acting in good faith and as any other reasonable member of the service would have acted. The Respondent believed the complainant was acting in a way that was dangerous to themselves and others. The complainant had called 911 numerous times this evening and was demanding to speak with the FBI and CIA with implausible claims that her ex-husband was hiding outside in a vehicle, in a black ski mask with a gun, and that her sister and niece were in her house with a gun. All these claims were investigated and determined to be impossible by officers on scene.

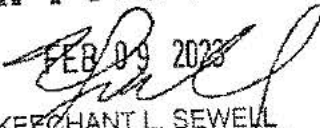
The Respondent made the decision to enter the location to remove the EDP so she did not cause injury to herself or others. The Respondent stated the complainant at one point threw a poster board down onto the second-floor landing. The Respondent believed the complainant may harm herself, by jumping from her balcony. The totality of the facts led the Respondent to believe she had an emergency at hand. ESU found the EDP on a neighboring balcony after she jumped from her balcony, to hide from the officers. The entry and search of the apartment was limited to the removal of the EDP. Based on all of the facts, it would not be in the interests of justice to issue discipline. I recommend **No Disciplinary Action** and the dismissal of the Charges and Specifications

RECOMMEND APPROVAL.


Edward A. Caban
FIRST DEPUTY COMMISSIONER

EAC/m

APPROVED


FEB 09 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER